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Attorneys for Defendant
AMAZON.COM SERVICES LLC

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, ACCURATE BACKGROUND, LLC, and DOES 1-10, inclusive,

Defendants.

Case No. 4:26-cv-09249-ASK

DEFENDANT AMAZON.COM SERVICES LLC'S REPLY IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF'S FIFTH, SIXTH, AND SEVENTH CLAIMS FOR RELIEF PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 12(b)(6)

Date: November 18, 2026
Time: 1:30 p.m.
Courtroom: 04
Judge: Hon. Ajay S. Krishnan

I. INTRODUCTION

Plaintiff Brendan Ngehsi Newanforbi's ("Plaintiff") concessions in his Opposition support granting Defendant Amazon.com Services LLC's ("Amazon") Partial Motion to Dismiss in full. Not only does Plaintiff agree that his UCL and IIED claims should be dismissed, but he fails to address any of the fatal errors with his invasion of privacy claim. Plaintiff crafts an invasion of privacy claim in an attempt to manufacture a legally protected interest, but no facts can cure the absence of a protected interest in public information. Therefore, Plaintiff's invasion of privacy and IIED claims should be dismissed with prejudice, and his UCL claim without prejudice.

II. PLAINTIFF AGREES HIS SIXTH AND SEVENTH CLAIMS SHOULD BE DISMISSED.

Plaintiff does not oppose dismissal of his claims for (1) violation of California's Unfair Competition Law ("UCL") and (2) intentional infliction of emotional distress ("IIED"). *See* Opp. at 14–16 (noting that "Plaintiff does not oppose dismissal of the Sixth Claim against Amazon on the presently pleaded equitable-relief theory" and "Plaintiff does not oppose dismissal of the IIED claim as against Amazon only"). His only objections are to whether dismissal should be with or without prejudice. While Amazon concedes that the UCL claim should be dismissed without prejudice under applicable law, the IIED claim should be dismissed with prejudice.

As to the UCL claim, Plaintiff has an adequate remedy at law which deprives a federal court of equitable jurisdiction to adjudicate the merits of this claim. The claim therefore should be dismissed without prejudice. *See Guzman v. Polaris Indus. Inc.*, 49 F.4th 1308, 1314 (9th Cir. 2022).

Regarding the IIED claim, Plaintiff asserts that discovery on "Amazon's knowledge, the reason for the employment outcome, and the severity of the distress" would uncover facts that would potentially permit him to plead a claim. Opp. at 16:5-6. Yet, none of these facts would go to the alleged conduct that Plaintiff asserts "exceed[s] all bounds of that usually tolerated in a civilized community." *King v. Facebook, Inc.*, 572 F. Supp. 3d 776, 785 (N.D. Cal. 2021). Thus, amendment would be futile on this claim given that no additional facts would change the alleged conduct that forms the basis for it. *See Wells v. Gonzales*, 2018 WL 1665439, at *7 (E.D. Cal.

Apr. 6, 2018), *adopted by* 2018 WL 3472548 (E.D. Cal. July 18, 2018) ("Plaintiff has already clearly stated the facts regarding the underlying conduct, and the Court finds that such conduct is not so outrageous in character and extreme in degree as to go beyond all possible bounds of decency and be utterly intolerable in a civilized society."). Plaintiff's IIED claim, therefore, should be dismissed with prejudice.

III. PLAINTIFF'S FIFTH CLAIM FOR INVASION OF PRIVACY SHOULD BE DISMISSED WITH PREJUDICE.

Plaintiff's Opposition conflates several of the factors necessary to show an invasion of privacy and asserts that one factor should override the rest. This is legally incorrect.

Throughout his Opposition, Plaintiff continually references California Penal Code Section 290.46 as creating a constitutional right to privacy over public information. *See* Opp. 10:13-17 (stating that the Complaint "alleges an interest in the information 'insofar as that information is used for purposes expressly prohibited by Penal Code § 290.46(j)(2)'"); Opp. 10:28-11:9. He argues that his claim is premised on the *use* of the information rather than the *information* itself. Opp. 11:21–28. This misstates the reach of a claim for invasion of privacy.

A claim for invasion of privacy under the California Constitution has three parts: (1) a legally protected privacy interest (the interest); (2) a reasonable expectation of privacy (the expectation); and (3) a serious invasion of that privacy interest (the defendant's conduct). *Hill v. Nat'l Collegiate Ath. Ass'n*, 7 Cal.4th 1, 35-37 (Cal. 1994). Plaintiff asks the Court to find that Amazon's purported *conduct* effectively satisfies the *interest* factor as constitutionally protected. This argument is backwards. Indeed, informational privacy only applies when there is "sensitive and confidential *information*" that underlies the claim of invasion of privacy. *Id.* at 35 (emphasis added). When the allegedly confidential information is already publicly disclosed, there cannot be a valid right to privacy claim. *See Fredenburg v. City of Fremont*, 119 Cal.App.4th 408, 422 (Cal. Ct. App. 2004) (noting that "essentially public information is not surrounded by a legally protected privacy interest"). No quantum of misuse alleged can backfill an alleged privacy interest that the underlying information lacks. Without any protected interest in the public information regarding his claim, Plaintiff cannot state a claim for invasion of privacy.

Even if an interest exists (it does not), Plaintiff's argument regarding consent is similarly flawed. He claims that Amazon argues for unfettered consent to "every possible source and use." Opp. 12:7-8. But even his Complaint shows that this alleged use was limited to any employment decision; there are no allegations that it was disseminated, broadcast, or sent to any third party. Compl.¶¶ 7-8. He consented to the use of the public information by means of a background check as part of routine employment procedures. That is precisely the type of use he consented to when signing up for a background check and tied directly to the harms he alleges. *See* Compl. ¶ 75 ("The invasion is serious because it resulted in the denial of employment . . . ."). There cannot be a sufficiently serious invasion when the information collected is used in alignment with a party's expectations and consent. *See Saleh v. Nike, Inc.*, 562 F. Supp. 3d 503, 525 (C.D. Cal. 2021) (discussing that "routine collection" of information and a plaintiff's "privacy choices" factor into seriousness of invasion).

Plaintiff's Opposition showcases his attempt to take a statutory right and morph it into a constitutional one. His claim still fails. Throughout his Opposition, Plaintiff continually references section 290.46 as creating a constitutional right to privacy over public information. *E.g.*, Opp. 10:13-17 (stating that the Complaint "alleges an interest in the information 'insofar as that information is used for purposes expressly prohibited by Penal Code § 290.46(j)(2)"). That cannot be the case. Indeed, Plaintiff has already brought a claim under Megan's Law, the statute providing the specific rights and remedies allegedly applicable for Count One, and he cannot now recast the same violations as a constitutional issue simply because the Legislature mandated it. *See Hill*, 7 Cal.4th at 35 (discussing that privacy violations are dependent on "well-established social norms").

In any event, additional factual pleading would be futile given that Plaintiff cannot allege a protected interest nor change the fact he consented to a background check. Plaintiff's claim should be dismissed with prejudice.

IV. CONCLUSION

Amazon respectfully requests that this Court dismiss Plaintiff's fifth claim for invasion of

privacy and seventh claim for intentional infliction of emotional distress with prejudice, while dismissing Plaintiff's sixth claim for unfair competition without prejudice.

Dated: October 13, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick
Douglass G. Brown (admitted *pro hac vice*)

Attorneys for Defendant
AMAZON.COM SERVICES LLC

CERTIFICATE OF SERVICE

BRENDAN NGEHSI NEWANFORBI V. AMAZON.COM SERVICES, LLC, ET AL.
CASE NO. 4:26-CV-09249-ASK

I, Suga A. Ikeda, declare:

I am a citizen of the United States and employed in Santa Clara County, California. I am over the age of eighteen years and not a party to the within entitled action. My business address is 1400 Page Mill Road, Palo Alto, CA 94304. On October 13, 2026, I served a copy of the within document(s):

DEFENDANT AMAZON.COM SERVICES LLC'S REPLY IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF'S FIFTH, SIXTH, AND SEVENTH CLAIMS FOR RELIEF PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 12(b)(6)

☐ by placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, the United States mail at Palo Alto, California addressed as set forth below.

☐ by placing the document(s) listed above in a sealed envelope and affixing a pre-paid FEDEX air bill and causing the envelope to be delivered to an agent for delivery.

☒ by transmitting via e-mail or electronic transmission the document(s) listed above to the person(s) at the e-mail address(es) set forth below.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
Email: bnn.cdl@gmail.com

Plaintiff, In Pro Per

VIA EMAIL

I am readily familiar with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

Executed on October 13, 2026, at Palo Alto, California.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Suga A. Ikeda

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SILICON VALLEY